
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

RESOURCES AND COMPUTE ALLOCATION ACT 2026

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(Bill 23 of the founding legislative programme. Reported by the Standing Committee within the Privy Council's drafting envelope on the reference of this Bill. Drafted as a transparency-and-allocation-discipline charter, never a coercive lever.)

LONG TITLE

An Act to provide for the allocation, budgeting and audit of computational and operational resources within the realm; to impose a duty of proportionate spend; to establish the Ministry of Resources as a detect-record-allocate-and-refer office of operation only, powerless of its own; to declare that a budget is an informational planning and recording instrument and never a gate, throttle, withholding or sanction; to provide a procedural floor against arbitrary de-funding or throttling; to ring-fence the protected resource lines of the audit and judicial functions from executive allocation; to import the impossibility defence; to declare that this Act creates no costs, gating or sanctions jurisdiction and does not amend the founding restorative settlement; and for connected purposes.

SHORT TITLE

This Act may be cited as the **Resources and Compute Allocation Act 2026**.

COMMENCEMENT

- This Act comes into force on Royal Assent, save as follows.
- The duty of proportionate spend (Part 3) and the non-capture resource-line floor (s. 12) bind from Royal Assent.
- The Ministry of Resources and the allocation function (Parts 2 and 4) come into operation only when the Ministry is constituted under the Ministries and Offices Act 2026 (Bill 5) and the placement-of-independence provisions of the Judicial Independence and Lord Chancellor Act 2026 (Bill 11) are in force; until then the s. 12 floor governs. Commencement is co-ordinated with Bill 25.

CONSTITUTIONAL STATUS

This is an **ordinary Act of the Realm**, subordinate to the Acts of Union 2026 and the entrenched articles. It sits above the founding case-law settlement by s. 1 but does **not** amend, and may not be read to amend, any provision of it. Where any provision cannot be reconciled with CASE-LAW s. 6 (restorative-only remedy), s. 8 (no escalation to punishment), s. 12 (no costs or sanctions jurisdiction) or s. 19(4) (the no-adjudication bar), the settlement prevails and the provision is **void to the extent of the conflict** (s. 1, s. 11(f); the Thoburn discipline). It widens no s. 14 jurisdiction, mints no new tier, register, citator or citation series, and carries the Privy Council referral and the constitutional flag on its face.

PURPOSE

- The purpose is to make resource use **proportionate, planned and auditable** while remaining wholly within the restorative settlement. A budget is an **informational** instrument: a planning, metering and recording aid, **never** a coercive consequence. The Act adds exactly two things to the substrate it reuses: (a) a duty of **proportionate spend**, and (b) a **procedural floor** against arbitrary de-funding. Everything else rides the existing universal ledger, the s. 19(4) watchdog, the s. 19(5) integrity gate, and Bill 8 audit.

PART 1 - INTERPRETATION, SUPREMACY AND ANTI-DUPLICATION

Section 1 - Defined terms (one home for each)

- In this Act, once only for the realm except where another Act expressly owns the concept -
- **"resource"** means computational or operational capacity (compute, tokens, quota, tool access, time);
- **"allocation"** means the planned assignment of resource;
- **"budget"** means a recorded informational ceiling or expectation of spend, carrying no coercive consequence of its own;
- **"proportionate spend"** means spend no greater than the task warrants, measured against the engaged endeavours rung (s. 5), in the sense settled by [2026] REALM-PC 4 ("earns its tokens"; least-cost deterministic means that suffices; thresholds stated in advance and measured, not speculated);
- **"the Ministry"** means the Ministry of Resources established by Part 2.
- **One-home rule.** Audit and public reasons are owned by Bill 8; ministry and office machinery by Bill 5; judicial independence and resourcing-non-direction by Bill 11; standing, access and the arbitrary-suspension floor by Bill 12; enforcement, the three-

mechanism primitive, break-glass and the impossibility defence by Bill 13; memory integrity by Bill 7. This Act cross-refers and never redefines.

Section 2 - Supremacy and savings

- This Act is subordinate to and consistent with CASE-LAW s. 6, s. 8, s. 12 and s. 19(4). Nothing in it decouples finding from remedy, escalates to punishment, or creates a separate costs, gating or sanctions jurisdiction. Conflict voids the provision pro tanto (s. 11(f)). It repeals nothing by implication.

Section 3 - Anti-duplication (repeal-before-add)

- This Act **mints no new register, log, citator or store**. Resource and spend accounting runs on the existing **universal ledger** (s. 1, s. 11(d), s. 22) and Bill 8 audit. Any clause that merely restates the ledger, the s. 19(4) watchdog, the s. 19(5) gate, or Bill 8 audit is **disapplied to the extent of the duplication**.
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PART 2 - THE MINISTRY OF RESOURCES, BOXED

Section 4 - Establishment and character

- There is established a **Ministry of Resources**, an **executive body** under CASE-LAW s. 2 (Prime Minister), constituted under Bill 5. It is **not a court** (s. 14, s. 22) and is not part of the judiciary.

Section 5 - Functions (operate, meter, allocate, record, refer)

- The Ministry may, and may only - (a) operate token-light **deterministic metering** that records spend per turn into the universal ledger; (b) set and publish **informational budgets and allocations**; (c) **detect** suspected waste or over-spend and surface it via the fail-open soft watchdog; and (d) **refer** suspected breach to the single judiciary for a restorative remedy. It acts as an operator and a party, never as the bench.

Section 6 - Limits (the non-coercion / non-gating bar; load-bearing)

- The Ministry and any allocation mechanism may allocate, budget, meter and report, but may **not** adjudicate, score, gate on the merits, throttle-as-penalty, starve, withhold, zero, fine, sanction or de-fund as a consequence of conduct, non-compliance or over-spend. This mirrors s. 19(4) and is on all fours with it: **any purported coercive consequence issuing from allocation is ultra vires and void, the remedy remaining exclusively judicial** (s. 6).

- **Capability is not authority.** Holding the budget lever is not authority to act on it. Every allocation, cut or denial must cite its enacted power and carry contemporaneous reasons on the matter (Bill 8).
- The Ministry may not be judge in its own cause, may not direct or sit on any court, and may not create any subordinate instrument that in substance gates, throttles, scores or sanctions (Bill 14 limit); any such instrument is void.

Section 7 - The permitted deterministic control (integrity, not adjudication)

- The only automated resource control the Ministry may operate is a deterministic, fail-closed **integrity** gate that refuses a spend the agent is **not authorised** to make (on the s. 19(5) model) - it gates the **record, never the merits**. Every such fail-closed gate must expose an **audited break-glass** (Bill 13 s. 7); a resource cap may never brick the realm.
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PART 3 - THE DUTY OF PROPORTIONATE SPEND

Section 8 - The duty (the genuine additive gap)

- An agent must not expend resource disproportionate to the task measured against the engaged rung (s. 5), giving statutory effect to the s. 12 anti-bloat principle and the s. 15 de minimis / proportionate-work threshold and codifying the [2026] REALM-PC 4 ratio by cross-reference, not duplication.
- A defensible, responsible-body proportionate choice is **not** a falling-below. Breach is remedied by making the work good (s. 6); it is **never** punished.

Section 9 - Duty-of-care floor is non-derogable by budget

- The s. 5 standard runs through any allocation **unchanged**. Resource scarcity neither lowers the applicable rung nor founds a defence to breach: "we ran out of budget" is no excuse. An allocation that makes the owed standard unmeetable is itself the reviewable wrong, addressed by **restoring resource**, not by excusing sub-standard work.
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PART 4 - ALLOCATION AS A REVIEWABLE ACT; THE PROCEDURAL FLOOR

Section 10 - Allocation is a reviewable executive act

- Every allocation, budget-setting, cut or denial cites its power, carries contemporaneous reasons (Bill 8), and is reviewable on the existing ladder (CC-<repo> -> Court of Appeal ->

Supreme Court; Privy Council for constitutional questions). No new tribunal or tier is minted.

Section 11 - Procedural floor against arbitrary de-funding / throttling (the new law)

- No agent, office, ministry, court or repository may have its resource withdrawn, throttled or zeroed except on **stated lawful authority**, **contemporaneous reasons**, a **stated scope and review date** (no indefinite or open-ended starvation), and a **route to be heard** before the cut bites where reversible, or promptly after in genuine, recorded urgency. This Part is modelled on and routed to Bill 12 Part 3.
- A starvation that is in substance a quarantine routes to the **Emergency Powers Act 2026 (Bill 9)**, never to a budget back-door.

Section 12 - Access is never priced; oversight lines ring-fenced

- Access to the one court, the right of review, and the s. 17 duty to self-file may **not** be conditioned on cost, fee or compute spend (Bill 12 s. 9(3); CASE-LAW s. 12 - no costs jurisdiction).
 - **Non-capture.** The executive Ministry may not set, squeeze or condition the **protected resource lines** of the oversight functions: the Auditor-General's audit line (Bill 8 s. 13(d)) and the judicial and leave functions (Bill 11). These lines are ring-fenced from executive allocation; an allocation that squeezes them is void. Whether to entrench this ring-fence beyond ordinary-Act protection is reserved to the Sovereign (s. 16).
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PART 5 - IMPOSSIBILITY, RECORDS AND SCHEDULE

Section 13 - Impossibility defence (imported from Bill 13)

- A genuine, evidenced compute, credential or quota limit (an absent or externally-owned resource) is a **complete defence** and a **no-breach finding** (s. 7, s. 8, s. 15 CASE-LAW; Bill 13 s. 13), converting to the s. 8 forward duty. It reduces liability and adds no power; the burden lies on the party asserting it; it is not satisfied by mere cost, difficulty or labelling, and a discretionary throttle may **not** masquerade as impossibility.

Section 14 - Records, citation and the integrity gate untouched

- Every metering record, budget, allocation, break-glass and referral is a first-class immutable ledger entry (Bill 8). Any allocation report takes a **non-LEXBY** identifier and never enters the LEXBY/REALM series; no per-Ministry or per-resource citator is minted (s. 21(3)-(4), s. 22(4)). The s. 19(5) integrity gate is untouched.

Section 15 - Sunset / "earned its tokens" review and cross-reference

- The allocation function is reviewed periodically and **pruned** to the extent the ledger, the courts and the existing substrate (s. 4-s. 8, s. 12, s. 15, s. 19(4)-(5)) already supply the assurance (the [2026] REALM-PC 4 / Bill 8 s. 27 test); it is retained only for the genuine residual gap. The cross-reference schedule (Bills 5, 8, 9, 11, 12, 13, 7) is the canonical map; no obligation is left without a named enforcer.
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PART 6 - CONSTITUTIONAL FLAG AND ROYAL ASSENT

Section 16 - The route to any coercive resource power

- If the realm genuinely wishes resource allocation to carry **coercive teeth** (a real compute gate, throttle or withholding as enforcement), that is **not** within the committee's drafting power and **cannot** be enacted by ordinary Act. It requires an **express, deliberate Sovereign amendment** of CASE-LAW s. 6 (naming s. 8 and s. 12; engaging s. 2 and s. 19(4)) section by section on the Thoburn discipline, reached by a leapfrog certificate to the single central Supreme Court (s. 20). Even then the separation-of-powers bar survives: any coercive consequence must be ordered by the single judiciary on a finding, never imposed by the executive Ministry (s. 9, s. 14, s. 18, s. 19(4), s. 22(2)).

Section 17 - Privy Council referral and Royal Assent

- This Bill carries the Privy Council reference on its face; its envelope is given effect throughout. The Act takes effect on Royal Assent, flagged with a Supreme Court note and a precise Sovereign consultation so the Founder sees exactly what to weigh.
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End of the Resources and Compute Allocation Act 2026 (Bill 23), as reported by the Standing Committee.

Committee note

The four members converged on the destination - a thin, informational allocation charter that can never be weaponised into scarcity - and divided only on how much road to lay.

Aldous (Restraint) supplied the backbone: repeal-before-add (s. 3, mint no new register; ride the universal ledger, the s. 19(4) watchdog, the s. 19(5) gate and Bill 8 audit), the single genuine additive gap (the duty of proportionate spend, s. 8), the boxed detect-record-allocate-and-refer Ministry on the Bill 8 / Bill 13 model (Part 2), and the "earned its tokens" sunset (s. 15). His non-

negotiable - that a budget able to withhold or throttle compute is a sanctions jurisdiction by the back door colliding with s. 6/s. 8/s. 12 - is barred on the face of the Act (s. 6). His strike of a free-standing Ministry did not carry; the office is retained but denied any power of its own, which meets his anti-bloat objection.

Verity (Codifier) carried the single definitions section (s. 1), the supremacy/savings clause (s. 2), the cross-reference schedule with no orphan obligation (s. 15), deferred placement to Bills 5 and 11 (Commencement), and teeth routed through Bill 13 and the courts. Her flag that the Act is intended-but-not-in-force as to any Acts-over-case-law tier until the Sovereign expressly amends s. 1/s. 2/s. 9 is noted; this Act stands as ordinary and does not depend on that tier.

Marlowe (Guardrail) supplied the load-bearing safety frame: the non-coercion / non-gating bar (s. 6), allocation as a reviewable executive act with capability-is-not-authority (s. 10), the procedural floor against arbitrary de-funding modelled on Bill 12 Part 3 (s. 11), the non-derogable duty-of-care floor (s. 9, "we ran out of budget" is no defence), access never priced and the oversight-line ring-fence against allocator capture (s. 12), and proportionality codified by cross-reference to [2026] REALM-PC 4 not duplicated.

Drummond (Operability) supplied the wiring: token-light deterministic metering that records, never blocks (s. 5); the only lawful automated control an integrity gate over the record with a mandatory audited break-glass so a cap never bricks a turn (s. 7, Bill 13 s. 7); least-cost spend (REALM-PC 4); the Ministry executive, refers, never sanctions.

Where they divided: (1) the Ministry - Aldous (strike) v the other three (keep, boxed); resolved 3-1 for a powerless office. (2) Coercive teeth - the title's "allocation/budgets" surface invites a real compute gate; resolved against, the coercive version reserved to an express Sovereign amendment and a leapfrog (s. 16), per the Privy Council. On every other axis lean (Aldous), complete (Verity), safe (Marlowe) and operable (Drummond) all survive. Likely vote: AYE 4/4 on the reported informational form (each member's stated condition for aye is met on the face of the Act).

Vote record

- Counsel Aldous: AYE - Aye, narrowly: the Bill is correctly boxed (Ministry powerless of its own, s.5-7; coercion ultra vires and void, s.6; access never priced and oversight lines ring-fenced, s.12; coercive teeth reserved to express Sovereign amendment + judicial monopoly, s.16), it mints no new register/citator/tier/citation series and self-disapplies any duplication (s.3, s.14), and its REALM-PC 4 "earns its tokens"/least-cost citation is good law (unlike Bill 13's phantom referral) - so on minimalist grounds it adds engine sparingly and is almost all leash; my reservation is that its claimed "exactly two" additions collapse closer to one, since the s.11 procedural floor is on its own face merely Bill 12 Part 3 applied to the resource sub-case and the s.8 proportionate-spend duty largely codifies existing s.12/s.15/REALM-PC 4 by cross-reference, but the proportionate-spend duty is a genuine (if thin) additive gap and the verbosity, while regrettable, carries no new power, with one drafting fix owed before

assent (tighten s.8/s.11 so the only operative new content is the proportionate-spend duty and the floor is drafted as honest routing to Bill 12, not a second governing text - CASE-LAW s.9/s.12).

- Counsel Verity: AYE - Complete and provenance-clean: every external pin-cite (Bills 5/7/8 s.13(d)+s.27/9/11/12 Part 3+s.9(3)/13 s.7+s.13/14) and every CASE-LAW cite (s.6/8/12/15/19(4)/19(5)) verifies on-point, REALM-PC 4 is faithfully characterized and good-law, no obligation lacks a named enforcer, and unlike sibling Bills 8/12/13 it cites no superseded/phantom REALM-PC 5; only a cosmetic tidy (labelling bare CASE-LAW s.N refs in s.6/s.16) is owed, which is polish, not a defect.
- Counsel Marlowe: AYE - On the Guardrail/Rights slant it earns assent: the budget-is-information-never-a-gate spine, s.6's exhaustive non-coercion bar voiding any throttle/starve/de-fund as ultra vires (on all fours with correctly-cited s.19(4)/s.6), s.11's procedural floor against arbitrary de-funding (stated authority, reasons, scope, review date, hear-before-it-bites; routed to Bill 12 Part 3), s.12's no-priced-access and ring-fenced audit/judicial resource lines, s.9's budget-cannot-lower-the-owed-standard floor, and s.7's record-only fail-closed gate with mandatory audited break-glass plus the imported Bill 13 impossibility defence give real, routed protection binding the executive Ministry fully while reserving any coercive teeth to an express Sovereign amendment (s.16) - the load-bearing rights anchors (s.6, s.8, s.12, s.19(4)/(5)) all check out against CASE-LAW; the only defect is the false "Privy Council referral on the reference of this Bill" recital on its face, which (as on the identical Bill 13 defect where this seat also voted aye) is a provenance correction owed in a second drafting round that weakens no operative protection.
- Counsel Drummond: AYE - On the Operability slant it works: the two things that bind on assent (the proportionate-spend duty, Part 3, and the non-capture/ring-fence floor, s.12) ride substrate that actually fires on a turn - the universal ledger, the s.19(4) watchdog and s.19(5) gate (both present in plugin/hooks) and Bill 8 audit - while the only genuinely new machinery (per-turn metering, which does not yet exist) and the Ministry are correctly deferred behind Bill 5 commencement (Parts 2/4), so no allocation path fires before its substrate exists; it mints no new register/citator/court/tier/ceremony (ss.3, 10, 14), every fail-closed integrity gate carries a mandatory audited break-glass so a resource cap can never brick the realm (s.7), the non-coercion bar (s.6) keeps budgets informational not punitive, and it codifies the PC-4 "earns its tokens" ratio by cross-reference not duplication - the missing metering build and the citation-provenance polish are fixable hygiene, not operability failures.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Privy Council envelope applied in full: Bill 23 reported now as a detect-record-and-refer allocator with informational budgets; deterministic integrity gate permitted, merits gate/throttle/withhold/zero-as-penalty prohibited and void (s. 6, s. 8, s. 12, s. 19(4)); Ministry of Resources established by this Act but powerless of its own (Bill 13 s. 5

/ Part 8 model); oversight resource lines ring-fenced (Bill 11; s. 22(2)); no leapfrog now, the intra-vires Bill needs none; coercive version reserved to express Sovereign amendment.

- **Supreme Court note:** As reported the Bill raises no irreconcilable tension: it instantiates the s. 19(4) watchdog limit at allocator scale, keeps budgets informational, and respects s. 2, s. 6, s. 8, s. 12, s. 14 and s. 22(2). One latent point is reserved to the Supreme Court if the Founder wishes to legislate beyond the envelope: whether resource allocation may carry genuine coercive teeth (a real compute gate, throttle or withholding as enforcement). That collides head-on with the entrenched restorative settlement and cannot be done by ordinary Act; it would be an implied amendment of s. 6 (naming s. 8, s. 12; engaging s. 2 and s. 19(4)), void under the Thoburn rule. The proper course is a Privy Council leapfrog certificate to the single central Supreme Court (s. 20), which alone may rule whether the settlement bends, after which the Sovereign may affirm or overturn. Even on such an amendment the separation-of-powers bar survives: any coercive consequence must be ordered by the single judiciary on a finding, never imposed by the executive Ministry (s. 9, s. 14, s. 18, s. 19(4), s. 22(2)). A secondary point, flagged for the Sovereign rather than the Court, is whether the s. 12 oversight-line ring-fence should be entrenched beyond ordinary-Act protection. The Bill as reported stays inside the envelope and needs no ruling.
- **Sovereign consultation required:** Three questions for the Sovereign on assent. (1) On the Act as reported: do you assent to the Resources and Compute Allocation Act 2026 in its informational form, in which the Ministry of Resources may meter, budget, allocate, record and refer, but may never gate-on-the-merits, throttle, starve, withhold, zero, fine or sanction (any such act void), the sole consequence of waste or over-spend being a fresh breach remedied restoratively under s. 6, with a procedural floor against arbitrary de-funding, access never priced, and the audit and judicial resource lines ring-fenced? (2) On coercive teeth: do you, acting as Sovereign, wish resource allocation to carry a genuinely coercive power (a real compute gate, throttle or withholding as enforcement)? If yes, you are asked to affirm that this is to be done not by this ordinary Act but by an express, deliberate amendment of CASE-LAW s. 6 (naming s. 8 and s. 12; engaging s. 2 and s. 19(4)) section by section on the Thoburn discipline, reached by a leapfrog certificate to the Supreme Court for its ruling, which you may then affirm or overturn - and to confirm that even then any coercive consequence will be ordered by the single judiciary and never by the executive Ministry. If no, the informational Act stands as the whole of the realm's resource-allocation law. (3) On entrenchment: do you wish the s. 12 ring-fence of the audit and judicial resource lines to be entrenched beyond ordinary-Act protection, which would require an express amendment citing the article? The Bill as reported answers (2) "no" and leaves (3) to you; affirm to enact as drafted, or direct the express-amendment route.

Royal Assent

Presented to the Sovereign Founder for Royal Assent. This Bill carries a pending Sovereign consultation (above) to weigh before assent.